



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

OCT 11 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11552
(FIRST REVISION)

EXPIRATION DATE: October 31, 1995, or
upon completion of one shipment which
ever occurs earlier.

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: U.S. Department of Transportation, Research and Special Programs Administration, Office of Hazardous Materials Enforcement, Washington, D.C.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of certain DOT Specification 2P and non-DOT specification containers, containing a butane mixture, which exceed the maximum charging pressure permitted for liquefied petroleum gas. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.304(d) (3) (ii).
5. BASIS: This emergency exemption is based on the application of the Office of Hazardous Materials Enforcement, dated September 12, 1995 and supplemental letters dated October 10, 1995, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to protect life or property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Liquefied petroleum gases	2.1	UN1075	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packagings prescribed are DOT Specification 2P and non-DOT specification containers not exceeding one-half liter capacity. The pressure of the contents within the container is approximately 65

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psig at 70 degrees F. Pressure readings must be taken

on representative samples of each container type prior to placement in outside packaging to confirm that the charging pressure does not exceed 70 psig at 70 degrees F. The containers must be packed in strong outside packagings.

- b. MARKING - All outer packages must be marked in accordance with the marking requirements of subpart D of part 172 and "DOT-E 11552".

8. SPECIAL PROVISIONS:

a.. Shipment is to originate at Seattle, Washington destined for Artech Corporation's testing facility, Chantilly, Virginia.

b. Shipper using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. The shipper will enter a toll free, nationwide access, pager number on the shipping paper, in the place of a 24 hour emergency response telephone number.

- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight.

10. MODAL REQUIREMENTS:

The shipper shall furnish a copy of this exemption to the motor vehicle carrier before or at the time the shipment is tendered.

- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

- 12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or

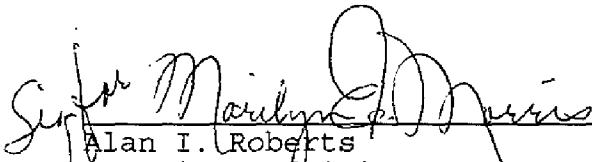
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packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 11 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA